

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                                                      |                               |                                                       |                                               |                                 |
|--------------------------------------------------|--------------------------------------------------------------------------------------|-------------------------------|-------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Cassandra Fenkel                | Team:<br>Team # 4                                                                    | CCRB Case #:<br>201410308     | <input type="checkbox"/> Force                        | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                                                                      |                               | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 09/16/2014 8:04 PM  | Location of Incident:<br>in front of § 87(2)(b); Lorraine Street and Columbia Street |                               | 18 Mo. SOL<br>3/16/2016                               |                                               | Precinct:<br>76                 |
| Date/Time CV Reported<br>Thu, 10/02/2014 9:30 AM | CV Reported At:<br>CCRB                                                              | How CV Reported:<br>In-person | Date/Time Received at CCRB<br>Thu, 10/02/2014 9:30 AM |                                               |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)       | Shield | TaxID  | Command |
|--------------------------|--------|--------|---------|
| 1. POM Christophe Nieves | 04279  | 947294 | 076 PCT |
| 2. POM Alejandro Manzano | 07658  | 947206 | 076 DET |

| Officer(s)                | Allegation                                                                                                           | Investigator Recommendation |
|---------------------------|----------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Christophe Nieves | Abuse: In front of § 87(2)(b) in Brooklyn, PO Christophe Nieves stopped the car in which § 87(2)(b) was an occupant. | A . Exonerated              |
| B . POM Alejandro Manzano | Abuse: In front of § 87(2)(b) in Brooklyn, PO Alejandro Manzano stopped the car in which § 87(2)(b) was an occupant. | B . Exonerated              |
| C . POM Christophe Nieves | Discourtesy: In front of § 87(2)(b) in Brooklyn, PO Christophe Nieves spoke rudely to § 87(2)(b)                     | C . Unsubstantiated         |
| D . POM Alejandro Manzano | Discourtesy: At § 87(2)(b) in Brooklyn, PO Alejandro Manzano spoke rudely to § 87(2)(b)                              | D . Unsubstantiated         |

## Case Summary

On October 2, 2014, § 87(2)(b) filed the following complaint in-person at the CCRB (encl. 6-7). On September 16, 2014, at approximately 08:04 p.m. § 87(2)(b) and his friend, § 87(2)(b) were seated inside a red 250 Turbo Mercedes Benz CLX coupe in a legal parking space on the southbound side of § 87(2)(b) in Brooklyn. § 87(2)(b) was seated in the driver's seat, and § 87(2)(b) was seated in the passenger's seat. § 87(2)(b)'s car was turned off, and his windows were down as he spoke with § 87(2)(b) about an upcoming trip to Colorado. While § 87(2)(b) and § 87(2)(b) spoke, an unmarked Chevy Impala traveling northbound on § 87(2)(b) made a U-turn and pulled up beside § 87(2)(b). PO Christophe Nieves and PO Alejandro Manzano exited from the unmarked Impala, approached § 87(2)(b)'s vehicle, and PO Nieves asked § 87(2)(b) for his license and registration (**Allegation A, Allegation B**). § 87(2)(b) provided his license and registration. While speaking with § 87(2)(b) PO Nieves allegedly made numerous discourteous statements using the word "fuck" (**Allegation C**). After checking for warrants, PO Nieves returned § 87(2)(b)'s license and registration, and § 87(2)(b) was released without a summons. § 87(2)(b)'s friend, § 87(2)(b) had no interaction with either PO Nieves or PO Manzano.

Approximately an hour later, § 87(2)(b) encountered PO Nieves and PO Manzano in their vehicle at the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn. § 87(2)(b) was the sole occupant of his vehicle at this time. At a stop light, § 87(2)(b) and PO Nieves made eye contact and nodded at each other, and from the police vehicle, PO Manzano allegedly shouted, “Hell yeah you pussy” (**Allegation D**).

## Attempts to Contact Civilians

- § 87(2)(b) provided the name of his friend, § 87(2)(b) § 87(2)(b) as a witness to the incident. Despite completing the agency-required contact attempts, the CCRB has been unable to reach § 87(2)(b) § 87(2)(b) (encl. 47-50).

## Mediation, Civil, and Criminal Histories

- Mediation was offered to § 87(2)(b) who opted to have his complaint investigated.
- As of March 6, 2015, § 87(2)(b) has not filed a notice of claim with the NYC Comptroller's Office (encl. 31).

[illegible]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]

### Civilian and Officer CCRB Histories

- This is the second CCRB complaint filed by [§ 87(2)(b)] (encl. 5).
- PO Christophe Nieves has been a member of service for six years. This is the third CCRB complaint against him. PO Nieves has had no substantiated CCRB allegations, [§ 87(2)(g)] [REDACTED]
- PO Alejandro Manzano has been a member of service for six years, and this is his first CCRB complaint (encl. 4).

### Potential Issues

- In his CCRB testimony, [§ 87(2)(b)] stated he called 911 after PO Nieves and PO Manzano approached his vehicle, which was corroborated by PO Nieves and PO Manzano in their CCRB testimonies. The CCRB requested the corresponding 911 recording from the NYPD Communications Division, but no such recording could be located.
- In his CCRB testimony, [§ 87(2)(b)] alleged two additional officers responded to the location in an unmarked car. However, both PO Nieves and PO Manzano testified they were the only officers present at the location and no additional units were requested, which is supported by the NYPD Sprint (encl. 28-29).

### Allegations Not Pleaded

- [§ 87(2)(g)] [REDACTED]

### Findings and Recommendations

**Allegation A – In front of [§ 87(2)(b)] in Brooklyn, PO Christophe Nieves stopped the car in which [§ 87(2)(b)] was an occupant.**

**Allegation B – In front of [§ 87(2)(b)] in Brooklyn, PO Alejandro Manzano stopped the car in which [§ 87(2)(b)] was an occupant.**

It is undisputed that PO Nieves and PO Manzano stopped [§ 87(2)(b)]'s vehicle in front of [§ 87(2)(b)]. Additionally, it is undisputed that [§ 87(2)(b)]'s vehicle was missing a front license plate.

In his CCRB testimony, [§ 87(2)(b)] alleged his vehicle was turned off and parked in a legal spot at the time of the stop. Additionally, [§ 87(2)(b)] stated the Mercedes Benz he was driving was missing its front license plate (encl. 8-13). Despite completing the agency-required contact attempts, the CCRB was unable to reach [§ 87(2)(b)] who was a passenger inside [§ 87(2)(b)]'s vehicle.

In their CCRB testimonies, both PO Nieves and PO Manzano testified that [§ 87(2)(b)]'s vehicle was stopped for idling for longer than three minutes, and not having a front license plate, both of which are violations. Additionally, both PO Nieves and PO Manzano testified that [§ 87(2)(b)] was not issued a summons out of discretion, and because anti-crime officers such as themselves rarely issue summonses and do not focus on vehicle violations. Aside from their

memo book entries, PO Nieves and PO Manzano had no other paperwork to prepare regarding § 87(2)(b)'s stop. Similarly, PO Nieves and PO Manzano did not believe § 87(2)(b)'s vehicle stop was the type of situation which warranted the preparation of a UF-250 (encl. 18-20, encl. 24-27).

According to New York State Vehicle and Traffic Law 402, no person shall operate, drive, or park a motor vehicle on the public highways of this state unless such a vehicle shall have a distinctive number assigned to it by the commissioner and a set of number plates issued by the commissioner with a number and other identification matter if any, corresponding to the certificate of registration conspicuously displayed, one on the front and one on the rear of such vehicle (encl. 1-2).

§ 87(2)(g)

It is therefore recommended that **Allegation A** and **Allegation B** be closed as **exonerated**.

**Allegation C- PO Christophe Nieves spoke rudely to § 87(2)(b) in front of § 87(2)(b)**

In his CCRB statement, § 87(2)(b) alleged that upon telling PO Nieves there was no “probable cause” to have stopped him, PO Nieves replied, “Oh you think you’re the fucking law? I’m the fucking law around here.” During his CCRB interview, § 87(2)(b) provided PO Nieves’ name, which he obtained from PO Nieves name tag, but later in the interview, § 87(2)(b) alleged PO Nieves identified himself as “Fucking Nieves.” § 87(2)(b) also alleged PO Nieves told him, “Don’t worry motherfucker” after § 87(2)(b) accused PO Nieves of “targeting a nigger in a Benz” (encl. 8-13).

In his CCRB testimony, PO Nieves denied using any profanity towards § 87(2)(b). PO Nieves denied saying “Oh you think you’re the fucking law? I’m the fucking law around here.” PO Nieves also denied identifying himself as “Fucking Nieves” and denied telling § 87(2)(b) “don’t worry motherfucker.” PO Nieves’ account was corroborated by PO Manzano’s CCRB testimony (encl. 18-20). PO Manzano denied hearing PO Nieves make any of the above statements, and denied hearing PO Nieves use profanity towards § 87(2)(b) (encl. 24-26).

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **unsubstantiated**.

**Allegation D- At § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Alejandro Manzano spoke rudely to § 87(2)(b)**

In his CCRB testimony, § 87(2)(b) alleged PO Manzano shouted from the unmarked vehicle, “Hell yeah you pussy” at the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn approximately an hour after the vehicle stop at § 87(2)(b). § 87(2)(b) was alone in his vehicle at this time (encl. 8-13).

In his CCRB testimony, PO Manzano denied saying “Hell yeah you pussy” out the window of his police vehicle. Similarly, PO Manzano denied referring to § 87(2)(b) as a “pussy” and denied using any profanity towards § 87(2)(b) whom he had no conversation with. Additionally, PO Manzano denied seeing § 87(2)(b) after the initial vehicle stop at § 87(2)(b) (encl. 24-26). PO Manzano’s account was corroborated by PO Nieves, who also denied seeing § 87(2)(b) again, and denied hearing PO Manzano shout, “Hell yeah you pussy” or use any other profanity toward § 87(2)(b) (encl. 18-20).

It is therefore recommended that  
**Allegation D** be closed as **unsubstantiated**.

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Team: \_\_\_\_\_

|                     |       |       |
|---------------------|-------|-------|
| Investigator: _____ | _____ | _____ |
| Signature           | Print | Date  |

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| Supervisor: _____ | _____ | _____ |
| Title/Signature   | Print | Date  |

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